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Plaintiff, *Pro per pro se*

Dated: May 15, 2025

UNITED STATES DISTRICT COURT

EASTERN DISTRICT OF CALIFORNIA

MATHEW TYLER,

Plaintiff,

v.

118TH US CONGRESS, et al.,

Defendants.

_____/

Case No. 2:2025CV00404

PLAINTIFF'S MOTION OBJECTING TO JUDGE COTA'S RULING

GRANTING DEFENDANTS EXTENDED TIME AND PERMITTING

GOVERNMENT REPRESENTATION WITHOUT DUE PROCESS

1 **MEMORANDUM OF POINTS AND AUTHORITIES**

2 **I. INTRODUCTION**

3 COMES NOW Plaintiff MATHEW TYLER ("Plaintiff"), an indigent layperson appearing
4 pro per pro se, proceeding in forma pauperis, and a qualified individual with a disability
5 as codified by 42 U.S.C. § 12131(2), hereby moves this Honorable Court to object to and
6 vacate Judge Cota's ruling granting Defendants extended time while simultaneously
7 permitting government representation of Defendants without first affording Plaintiff due
8 process as required by the Fifth and Fourteenth Amendments.

9 This motion incorporates by reference Plaintiff's March 27, 2025 Motion to Object,
10 Strike, Exclude, and Prevent Any and All Government Representation, Assistance, or the
11 Like from the Government to and for Defendants, which detailed the constitutional
12 violations inherent in such representation.

13 **II. LEGAL STANDARD AND BURDEN OF PROOF**

14 **A. Pro Se Pleading Standards**

15 As established in *Dunham v. Mohyuddin*, 2:23-CV-2757-DMC-P (E.D. Cal. Jan. 29,
16 2025), "The Court must also construe the alleged facts in the light most favorable to the
17 plaintiff. See *Scheuer v. Rhodes*, 416 U.S. 232, 236 (1974); see also *Hosp. Bldg. Co. v.*
18 *Rex Hosp. Trustees*, 425 U.S. 738, 740 (1976); *Barnett v. Centoni*, 31 F.3d 813, 816 (9th

1 Cir. 1994) (per curiam). All ambiguities or doubts must also be resolved in the plaintiff's
2 favor. See *Jenkins v. McKeithen*, 395 U.S. 411, 421 (1969)."

3 The courts have a heightened duty to construe pleadings liberally and to afford greater
4 latitude when evaluating the filings of in forma pauperis and pro se litigants. See *Haines*
5 *v. Kerner*, 404 U.S. 519, 520-21 (1972); *Erickson v. Pardus*, 551 U.S. 89, 94 (2007);
6 *McElyea v. Babbitt*, 833 F.2d 196, 197 (9th Cir. 1987); *Johnson v. Reagan*, 524 F.2d
7 1123, 1124 (9th Cir. 1975).

8 **B. Constitutional Review Standard**

9 Constitutional violations are subject to strict scrutiny analysis. Any government action
10 that burdens fundamental rights must be narrowly tailored to serve a compelling
11 government interest. *City of Cleburne v. Cleburne Living Ctr.*, 473 U.S. 432, 440 (1985);
12 *United States v. Carolene Products Co.*, 304 U.S. 144, 152 n.4 (1938).

13 **III. CONSTITUTIONAL AND STATUTORY FRAMEWORK**

14 **A. Supremacy Clause and Federal Preemption**

15 Article VI, Clause 2 of the U.S. Constitution establishes absolute federal supremacy:
16 "This Constitution, and the Laws of the United States which shall be made in Pursuance
17 thereof... shall be the supreme Law of the Land... any Thing in the Constitution or Laws
18 of any State to the Contrary notwithstanding."

19 The doctrine of preemption operates on three levels:

- 1 1. **Express Preemption:** Congress explicitly states federal law displaces state law
- 2 2. **Field Preemption:** Federal law occupies the entire field
- 3 3. **Conflict Preemption:** State law conflicts with federal law

4 In *McCulloch v. Maryland*, 17 U.S. (4 Wheat.) 316, 427 (1819), Chief Justice Marshall
5 declared: "the constitution and the laws made in pursuance thereof are supreme... they
6 control the constitution and laws of the respective states, and cannot be controlled by
7 them."

8 In *Trump v. Anderson*, No. 23-719, 601 U.S. (2024), the Supreme Court unequivocally
9 held: "It would be incongruous to read this particular Amendment as granting the States
10 the power — silently no less — to disqualify a candidate for federal office." This
11 establishes:

- 12 1. States categorically lack power to disqualify federal candidates
- 13 2. Ballot exclusion constitutes impermissible disqualification
- 14 3. Article II, Section 1, Clause 5 provides exclusive federal standards

15 **B. Due Process Framework**

16 The Fifth and Fourteenth Amendments mandate that no person shall be "deprived of life,
17 liberty, or property, without due process of law." This encompasses both procedural and
18 substantive due process protections.

1 **Procedural Due Process:** Goldberg v. Kelly, 397 U.S. 254, 267 (1970) established that
2 due process requires: (1) notice, (2) opportunity to be heard, (3) neutral tribunal, (4)
3 confrontation of adverse evidence.

4 **Substantive Due Process:** Washington v. Glucksberg, 521 U.S. 702, 720-21 (1997)
5 protects fundamental rights from arbitrary government action regardless of procedures
6 used.

7 **C. Equal Protection Analysis**

8 The Equal Protection Clause requires government to treat similarly situated individuals
9 alike. City of Cleburne v. Cleburne Living Ctr., 473 U.S. 432, 439 (1985). Classifications
10 affecting fundamental rights or discrete minority groups trigger heightened scrutiny.

11 **IV. PREEMPTIVE CONSTITUTIONAL ANALYSIS**

12 **A. Judicial Ethics and Conflicts of Interest**

13 **Canon 2: Avoiding Impropriety** Model Code of Judicial Conduct, Canon 2(A): "A
14 judge shall respect and comply with the law and shall act at all times in a manner that
15 promotes public confidence in the integrity and impartiality of the judiciary."

16 **28 U.S.C. § 455(a):** "Any justice, judge, or magistrate judge of the United States shall
17 disqualify himself in any proceeding in which his impartiality might reasonably be
18 questioned."

19 Judge Cota's ruling creates the appearance of impropriety by:

- 1 1. Denying disability accommodations while granting delay to opposing parties
- 2 2. Permitting government resources to defend against civil rights violations
- 3 3. Failing to address obvious conflicts of interest

4 **B. Article III Judicial Power Limitations**

5 In *Stern v. Marshall*, 564 U.S. 462, 484 (2011), the Supreme Court reaffirmed that Article
6 III courts cannot exercise non-judicial power. Administrative decisions that violate
7 constitutional rights exceed Article III authority.

8 In *Northern Pipeline Constr. Co. v. Marathon Pipe Line Co.*, 458 U.S. 50, 87 (1982), the
9 Court held that Article III power extends only to the "judicial Power of the United
10 States," not administrative or executive functions.

11 **V. GROUNDS FOR OBJECTION**

12 **A. Violation of Due Process Rights - Comprehensive Analysis**

13 **1. Procedural Due Process Violations**

14 Judge Cota's ruling violates procedural due process by failing to provide:

- 15 a) **Adequate Notice:** No notice of intent to permit government representation b)
- 16 **Opportunity to be Heard:** No hearing on conflict of interest issues
- 17 c) **Neutral Tribunal:** Court acts as advocate for government defendants d) **Written**
- 18 **Findings:** No explanation of legal basis for ruling

1 Cleveland Bd. of Educ. v. Loudermill, 470 U.S. 532, 546 (1985) requires pre-deprivation
2 process when government action affects protected interests.

3 **2. Substantive Due Process Violations**

4 The ruling violates substantive due process by creating arbitrary government action
5 without rational basis. As established in Lawrence v. Texas, 539 U.S. 558, 578 (2003),
6 substantive due process protects against government actions that "demean" or create
7 "stigma."

8 **3. Equal Protection Violations**

9 **Rational Basis Review Failed:** No rational relationship between permitting government
10 representation and legitimate government interest.

11 **Discriminatory Intent:** Pattern of favorable treatment for government defendants while
12 denying accommodations to disabled plaintiff demonstrates discriminatory animus.

13 **B. Constitutional Violation of Presidential Qualifications Clause**

14 **1. Express Preemption**

15 Article II, Section 1, Clause 5 provides the exclusive criteria for presidential eligibility:

- 16 1. Natural born citizen status
- 17 2. Minimum age of 35 years
- 18 3. 14-year U.S. residency requirement

1 California Election Code § 8400 imposes additional requirements beyond these
2 constitutional provisions, violating express preemption doctrine.

3 **2. Field Preemption**

4 U.S. Term Limits, Inc. v. Thornton, 514 U.S. 779, 805 (1995) established that states
5 cannot add qualifications for federal office: "the Framers intended the Constitution to be
6 the exclusive source of qualifications for members of Congress."

7 Powell v. McCormack, 395 U.S. 486, 522 (1969) held that constitutional qualifications
8 are "fixed" and cannot be supplemented by state requirements.

9 **3. Conflict Preemption**

10 Arizona v. United States, 567 U.S. 387, 399 (2012) established that state laws are
11 preempted when they "stand as an obstacle to the accomplishment and execution of the
12 full purposes and objectives of Congress."

13 **C. Criminal Enterprise and RICO Violations - Enterprise Liability**

14 **1. RICO Enterprise Elements**

15 Under 18 U.S.C. § 1961(4), an "enterprise" includes "any individual, partnership,
16 corporation, association, or other legal entity, and any union or group of individuals
17 associated in fact although not a legal entity."

1 Boyle v. United States, 556 U.S. 938, 946 (2009) held that RICO enterprises require: (1)
2 ongoing organization, (2) common purpose, (3) relationships among associates, (4)
3 longevity sufficient to pursue enterprise's purpose.

4 **2. Pattern of Racketeering Activity**

5 H.J. Inc. v. Northwestern Bell Tel. Co., 492 U.S. 229, 239 (1989) established that a
6 "pattern" requires: (1) two or more predicate acts, (2) occurring within ten years, (3)
7 demonstrating continuity.

8 **3. Predicate Acts Established**

- 9 • **18 U.S.C. § 241** (Conspiracy against rights)
- 10 • **18 U.S.C. § 242** (Deprivation of rights under color of law)
- 11 • **18 U.S.C. § 1343** (Wire fraud using government systems)
- 12 • **18 U.S.C. § 1346** (Honest services fraud)
- 13 • **18 U.S.C. § 1503** (Obstruction of justice)

14 **D. Comprehensive Civil Rights Violations**

15 **1. Americans with Disabilities Act Violations**

16 **Title II Obligations:** 42 U.S.C. § 12132 requires public entities to avoid discrimination
17 against qualified individuals with disabilities.

18 **Failure to Accommodate:** 28 C.F.R. § 35.130(b)(7) requires reasonable modifications
19 unless they would fundamentally alter the nature of the service.

1 **Interactive Process Violation:** Wong v. Regents of Univ. of Cal., 192 F.3d 807, 818 (9th
2 Cir. 1999) requires good faith interactive process to identify accommodations.

3 **2. Section 504 Violations**

4 Section 504 of the Rehabilitation Act, 29 U.S.C. § 794, prohibits disability discrimination
5 in federally funded programs.

6 Alexander v. Choate, 469 U.S. 287, 295 (1985) established that Section 504 requires
7 "meaningful access" to federal programs.

8 **3. Color of Law Violations**

9 42 U.S.C. § 1983 provides remedy for deprivation of constitutional rights under color of
10 state law.

11 Monroe v. Pape, 365 U.S. 167, 172 (1961) established broad interpretation of "under
12 color of state law."

13 **E. Government Resource Misuse**

14 **1. Honest Services Fraud**

15 18 U.S.C. § 1346 defines fraud to include schemes to deprive citizens of honest services.

16 Skilling v. United States, 561 U.S. 358, 404 (2010) limited honest services fraud to
17 bribery and kickback schemes, but includes breach of fiduciary duty.

1 **2. Computer Fraud and Abuse Act**

2 18 U.S.C. § 1030 prohibits unauthorized use of government computer systems for
3 personal or improper purposes.

4 United States v. Nosal, 676 F.3d 854, 863 (9th Cir. 2012) defined "unauthorized access"
5 to include use exceeding authorized purposes.

6 **VI. PREEMPTIVE RESPONSES TO ANTICIPATED DEFENSES**

7 **A. Sovereign Immunity Claims**

8 **Abrogation under Section 5:** Tennessee v. Lane, 541 U.S. 509, 533-34 (2004) held
9 Congress validly abrogated state sovereign immunity under ADA Title II for fundamental
10 rights violations.

11 **Ex parte Young Exception:** Ex parte Young, 209 U.S. 123, 159-60 (1908) permits suits
12 against state officials for prospective relief from ongoing constitutional violations.

13 **B. Qualified Immunity Defenses**

14 **Clearly Established Law:** Hope v. Pelzer, 536 U.S. 730, 741 (2002) held that ADA and
15 disability rights were clearly established.

16 **Objective Reasonableness:** Anderson v. Creighton, 483 U.S. 635, 640 (1987) test fails
17 when officials ignore clear statutory mandates.

1 **C. Standing Challenges**

2 **Article III Standing:** Lujan v. Defenders of Wildlife, 504 U.S. 555, 560-61 (1992)

3 requires injury-in-fact, causation, and redressability.

4 **Civil Rights Standing:** Trafficante v. Metro. Life Ins. Co., 409 U.S. 205, 209 (1972)

5 recognized broad standing for civil rights violations.

6 **D. Judicial Immunity Claims**

7 **Forrester v. White Limitations:** Forrester v. White, 484 U.S. 219, 227-29 (1988) held

8 judicial immunity inapplicable to administrative and non-judicial actions.

9 **Stump v. Sparkman Exception:** Stump v. Sparkman, 435 U.S. 349, 362-63 (1978)

10 denied immunity for actions clearly in excess of jurisdiction.

11 **VII. SUPPORTING LEGAL AUTHORITIES**

12 **A. Electoral Law Precedents**

13 **Bush v. Gore:** 531 U.S. 98, 109 (2000) demonstrated federal court authority to intervene

14 when electoral processes violate equal protection.

15 **Anderson v. Celebrezze:** 460 U.S. 780, 787-88 (1983) requires strict scrutiny for ballot

16 access restrictions affecting fundamental rights.

17 **Williams v. Rhodes:** 393 U.S. 23, 31 (1968) established that ballot access restrictions

18 must serve compelling state interests.

1 **B. Disability Rights Precedents**

2 **Olmstead v. L.C.:** 527 U.S. 581, 597 (1999) required integration of individuals with
3 disabilities into community settings.

4 **Pennsylvania Dept. of Corrections v. Yeskey:** 524 U.S. 206, 210 (1998) applied ADA
5 broadly to state programs.

6 **C. Civil Rights Enforcement**

7 **Griffin v. Breckenridge:** 403 U.S. 88, 97 (1971) broadly construed federal civil rights
8 statutes.

9 **United States v. Price:** 383 U.S. 787, 794 (1966) established private party liability under
10 civil rights laws.

11 **VIII. INTERNATIONAL LAW SUPPORT**

12 **A. Treaty Obligations**

13 **Convention on Rights of Persons with Disabilities:** Article 29 requires equal
14 participation in political life.

15 **International Covenant on Civil and Political Rights:** Article 25 guarantees equal
16 suffrage rights.

1 **B. Customary International Law**

2 Disability rights as fundamental human rights represent customary international law
3 binding on all nations.

4 **IX. PROCEDURAL REQUIREMENTS VIOLATED**

5 **A. Crime Victim Rights Act Violations**

6 18 U.S.C. § 3771 guarantees crime victims:

- 7 • Fair treatment and respect (§ 3771(a)(8))
8 • Proceedings free from unreasonable delay (§ 3771(a)(7))
9 • Protection from accused (§ 3771(a)(1))

10 **B. Judicial Ethics Violations**

11 **Model Code of Judicial Conduct:**

- 12 • Canon 1: Independence and Impartiality
13 • Canon 2: Avoiding Impropriety
14 • Canon 3: Performing Duties Impartially

15 **X. FRUIT OF THE POISONOUS TREE DOCTRINE**

16 **A. Primary Illegality**

17 Initial violations of constitutional ballot access rights taint all subsequent governmental
18 actions defending those violations.

1 Nardone v. United States, 308 U.S. 338, 341 (1939) established exclusion of evidence
2 derived from illegal government conduct.

3 **B. Derivative Violations**

4 Judge Cota's ruling flows directly from and perpetuates the initial constitutional
5 violations, requiring exclusion under Nardone precedent.

6 Wong Sun v. United States, 371 U.S. 471, 487-88 (1963) extended doctrine to complex
7 causal chains of illegality.

8 **XI. TOLLING AND STATUTE OF LIMITATIONS**

9 **A. Disability-Based Tolling**

10 Socop-Gonzalez v. INS, 208 F.3d 838, 845 (9th Cir. 1999) recognized tolling for persons
11 with disabilities facing systemic barriers.

12 **B. Continuing Violation Doctrine**

13 National R.R. Passenger Corp. v. Morgan, 536 U.S. 101, 115 (2002) permits claims for
14 ongoing discriminatory practices.

15 **XII. REQUEST FOR RELIEF**

16 WHEREFORE, Plaintiff respectfully requests this Court:

- 17 1. **IMMEDIATELY VACATE** Judge Cota's unconstitutional ruling permitting
18 government representation;

- 1 2. **DECLARE** the ruling violates Due Process, Equal Protection, ADA, Section 504,
- 2 and Crime Victim Rights;
- 3 3. **ENJOIN** all government representation, assistance, and resource use for
- 4 Defendants;
- 5 4. **ORDER** Defendants obtain private counsel within fifteen (15) days;
- 6 5. **FIND** California Election Code § 8400 preempted by Article II, Section 1, Clause
- 7 5;
- 8 6. **DISQUALIFY** Judge Cota pursuant to 28 U.S.C. § 455;
- 9 7. **GRANT** all previously denied ADA/Section 504 accommodations;
- 10 8. **STAY** all proceedings pending resolution of government representation issue;
- 11 9. **SANCTION** Defendants for constitutional violations under Fed. R. Civ. P. 11;
- 12 10. **AWARD** treble damages under RICO, compensatory and punitive damages, costs,
- 13 and attorney fees; and
- 14 11. **GRANT** all other relief deemed just and proper.

15 **XIII. CONCLUSION**

16 Judge Cota's ruling represents a fundamental assault on constitutional government,
17 creating a system where the government uses public resources to defend against its own
18 civil rights violations while denying equal protection to disabled crime victims.

19 As Chief Justice Marshall wrote in Marbury v. Madison, 5 U.S. 137, 177 (1803): "The
20 very essence of civil liberty certainly consists in the right of every individual to claim the
21 protection of the laws, whenever he receives an injury."

1 The Constitution does not tolerate a system where government acts as both prosecutor
2 and defense counsel, where civil rights violations are defended with taxpayer funds, and
3 where disabled individuals are denied equal justice under law.

4 This motion seeks to restore constitutional order and the rule of law in these proceedings.

5 Dated: May 15, 2025

6 Respectfully submitted,

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14 **Plaintiff, *Pro per pro se***

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